

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SHU-HONE YAO,

Petitioner

VS.

ERWIN MOCK,

Respondent

) Case Number: FDI-21-795805

) Hearing Date: April 21, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER REQUEST TO SEAL PLEADINGS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Shu-Hone (Lisa) Yao (Mother) and Respondent Erwin Mock (Father) have two minor children, Elana (DOB: 10/3/2012, age 13) and Alexander (DOB: 9/10/2015, age 10).
- 2) A Judgment was entered in this matter on 1/31/2024, which incorporated a confidential Marital Settlement Agreement.
- 3) On for hearing is Father's Request for Order filed 2/23/2026 asking that "all pleadings related to the domestic violence pleadings be sealed from the public record. Father lists 12 pleadings total that he would like sealed, including pleadings related to the instant motion. Father states that in February 2026, he became aware that trellis.law and unicourt.com have published records involving Mother's request for a domestic violence restraining order (which Mother later withdrew) and that the websites have refused to remove the pleadings from their site absent a court order. Father states, "These filings, which are available to view by anyone who Googles my name or Ms. Yao's name, will have a direct impact on my ability to continue in my professional and volunteer efforts if these remain a part of the public court file... Unless the court orders the

1 records to be sealed, these records... will remain available for public consumption, and cause
2 long-lasting harm to our family in violation of our right to privacy... Ms. Yao has indicated that
3 she supports this request and will join in it. We are not seeking a blanket sealing order to maintain
4 privacy of all respects. We have instead narrowly tailored this request to only the pleadings
5 related to the domestic violence action, custody, and this motion. Absent a sealing order from this
6 Court, I do not believe there are other means in which to protect my privacy rights.”

- 7 4) On 2/17/2026, Father filed a Memorandum of Points and Authorities citing California Rules of
8 Corut, rules 2.550 – 2.551; Section 1, Article 1 of the California Constitution; and NBC
9 Subsidiary v. Superior Court (1999) 20 Cal.4th 1178.
- 10 5) On 4/8/2026, Mother filed a Responsive Declaration stating that she is joining Father in his
11 request to seal the identified pleadings. Mother also identifies her own list of pleadings (separate
12 from Father’s list) that she seeks to seal. The Court notes that on 3/30/2026, Mother filed her own
13 Request for Order to seal this additional set of pleadings and the hearing is currently set for
14 6/4/2026. Mother states that the pleadings the parties are seeking to seal “ include sensitive and
15 extremely private information about me, my children, and our family, all of which can be
16 accessed merely by Googling our names. They include records relating to my Request for
17 Domestic Violence Restraining Order, which I withdrew.... If these records were to remain
18 published, it would cause great personal harm to me, Erwin, and our child and directly impact
19 professional and volunteer endeavors... Judgment in our marital dissolution action was entered
20 years ago. The filing are merely historical documents at this point with no relevance to any on-
21 going litigation. Neither Erwin nor I are public figures. The information contained in these
22 pleadings is damaging to our family if left easily accessible.”
- 23 6) On 3/30/2026 Mother filed her own Request for Order asking the Court to seal 16 pleadings
24 (these pleadings are not the same pleadings that Father is asking the Court to seal in his 2/23/2026
25 Request for Order). The hearing on Mother’s Request for Order is currently set for 6/4/2026.

26 **B. Findings and Order**

- 27 1) Mother’s request to seal her list of 16 identified pleadings is denied without prejudice. The Court
28 will hear Mother’s request related to these pleadings at the upcoming 6/4/2026 hearing.
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- 1 2) Under California Rule of Court, rule 2.550(d), “The court may order that a record be filed under
2 seal only if it expressly finds facts that establish: (1) There exists an overriding interest that
3 overcomes the right of public access to the record; (2) The overriding interest supports sealing the
4 record; (3) A substantial probability exists that the overriding interest will be prejudiced if the
5 record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive
6 means exist to achieve the overriding interest.”
- 7 3) The Court finds that the parties have not identified an overriding interest that overcomes the right
8 of public access to the record, nor does the Court find that the parties have shown that a
9 substantial probability exists that any purported overriding interest will be prejudiced if the record
10 is not sealed. The Court denies Father’s request to seal records related to the Request for
11 Domestic Violence Restraining Order.
- 12 4) Father’s attorney shall prepare the Findings and Order After Hearing.
- 13 5) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
14 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
15 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
16 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
17 proposed order after hearing directly to the court. Failure to submit the order after hearing within
18 10 days may allow the other party to prepare a proposed order and submit it to the court in
19 accordance with CA Rules of Court, Rule 5.125(d).
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